



IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 1ST DAY OF DECEMBER, 2025

PRESENT

THE HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD

AND

THE HON'BLE MR. JUSTICE TYAGARAJA N. INAVALLY

REGULAR FIRST APPEAL NO.200069 OF 2024 (PAR/POS)

BETWEEN:

MAHANTESH S/O KALLAPPA PATIL,
AGE: 65 YEARS, OCC: AGRICULTURE AND
BUSINESS, R/O. BASAVARAJENDRA NAGAR,
SINDAGI ROAD, INDI, TQ. INDI,
DIST. VIJAYAPUR.

...APPELLANT

(BY SRI. MANVENDRA REDDY, ADVOCATE)

AND:

1. TARABAI W/O KALLAPPA PATIL,
AGE: 83 YEARS, OCC: HH WORK,
R/O. INDI, TQ. INDI, DIST. VIJAYAPURA.
2. USHA W/O MAHADEV KORE,
AGE: 63 YEARS, OCC: HH WORK,
R/O. AGARKHED, TQ. INDI,
DIST. VIJAYAPUR – 586 101.

APPASAHEB KALLAPPA PATIL
DECEASED BY LRS,





3. PREMALATA W/O APPASAB PATIL,
AGE: 50 YEARS, OCC: HH WORK,
R/O. INDI, TQ. INDI,
DIST. VIJAYAPUR – 58 101.
4. DEEPAK S/O APPASAB PATIL,
AGE: 29 YEARS, OCC: HH WORK,
R/O. INDI, TQ. INDI,
DIST. VIJAYAPUR – 586 101.
5. PRIYANKA D/O APPASAB PATIL,
AGE: 27 YEARS, OCC: HH WORK,
R/O. INDI, TQ. INDI,
DIST. VIJAYAPUR – 586 101.
6. AISHWARAYYA D/O APPASAB PATIL,
AGE: 21 YEARS, OCC: STUDENT,
R/O. INDI, TQ. INDI,
DIST. VIJAYAPUR – 586 101.
7. BHARATI W/O MALLESHI NAGANURU,
AGE: 55 YEARS, OCC: HH WORK,
R/O. ALAGURU, TQ. JAMAKHANDI,
DIST. BAGALKOT- 587 101.
8. MANJULA W/O APPASAHEB HATTI,
AGE: 55 YEARS, OCC: HH WORK,
R/O. NEAR BDCC BANK,
VIJAYAPUR – 586 101.

...RESPONDENTS

(BY SRI. SANTOSH KUMAR B. BIRADAR, ADV. FOR R1 TO R8)

THIS REGULAR SECOND APPEAL IS FILED UNDER SECTION 96 OF THE CODE OF CIVIL PROCEDURE, PRAYING TO, A) ALLOW THE APPEAL. B) SET ASIDE THE JUDGMENT AND DECREE PASSED BY THE SENIOR CIVIL JUDGE AND JMFC INDI IN O.S. NO.29/2019 AND DISMISS THE COUNTER CLAIM OF



THE DEFENDANT NO.3 THROUGHOUT COSTS. C) TO REMAND THE MATTER TO TRIAL COURT WITH A DIRECTION TO GIVE OPPORTUNITY TO FILE REJOINDER TO COUNTER CLAIM OF DEFENDANT NO.3 AND TO CROSS EXAMINE THE DEFENDANTS WITNESSES AND ALSO TO ADDUCE THE EVIDENCE AND TO DISPOSE OF THE COUNTER CLAIM ON MERITS.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD
AND
HON'BLE MR. JUSTICE TYAGARAJA N. INAVALLY

ORAL JUDGMENT

(PER: HON'BLE MR. JUSTICE H.T.NARENDRA PRASAD)

This appeal is filed under Section 96 of CPC filed by the plaintiff challenging the judgment and decree dated 15.04.2024 passed in O.S.No.29/2019 by Senior Civil Judge & JMFC, Sindagi.

2. The plaintiff has filed a suit for partition and separate possession in O.S.No.29/2019, the suit came to be allowed partly by judgment and decree dated



15.04.2024. Being aggrieved by the same, the plaintiff has filed this appeal.

3. After service of notice to respondents in this appeal, the parties are represented by their counsels and filed a compromise petition under Order 23 Rule 3 R/w 151 of CPC.

4. All the parties are present before this Court and have been identified by their respective counsels. The parties have agreed to the settlement as per the compromise petition. We are satisfied with the compromise entered into between the parties. The compromise petition is extracted below:

"COMPROMISE PETITION UNDER ORDER 23
RULE 3, R/W SECTION 151 OF CIVIL
PROCEDURE CODE, 1908

1. For the sake of convenience the parties herein shall be referred to in terms of their rank and status before the Trial Court in O.S.No.29/2019 on the file of Senior Civil Judge and JMFC.

2. This regular second appeal is filed by the Plaintiff challenging the judgment and decree dated



15.04.2024 passed in O.S.No.29/2019 on the file of the Senior Civil Judge and JMFC at Indi, partly decreeing the counter claim of defendant No.3, declaring that defendant No. 1 to 5 having 1/6th share in the properties described in Schedule-B of plaint and properties at SL.No.1 to 7 of written statement filed by the defendant No.3.

3. That, plaintiff and all the defendants are legal heirs and belong to the common ancestor deceased Kallappa Patil who the husband of the Defendant No.1.

4. The defendants/respondents are served with notices and due to intervention of elders and well wishers of the plaintiff and the defendants have mutually agreed to settle the dispute amicably by way of compromise. The parties to the proceedings have settled the dispute at their own will and desire without being influenced by threat; coercion or misrepresentation. The parties to the appeal have agreed to reduce their terms of understanding in the form of present compromise petition.

5. That, the parties to the appeal have agreed to settle all the disputes by their own consent and have understood the terms of the present compromise and have put their respective signature.

6. That, appellant / plaintiff and all the respondents/defendants submits compromise petition praying this Hon'ble Court be please to record the



present compromise and decree the appeal in the terms of the following compromise between parties.

7. That, this appeal is filed by Appellant/Plaintiff. In view of the following compromise the properties shown in Schedule-A below are already in possession of Plaintiff and his sons, wife and now exclusively given to the share and title of Plaintiff jointly with all remaining LRs of plaintiff branch and given up/surrender his entire share in the Schedule-B & C properties to defendants 2 to 5, respectively.

SCHEDULE 'A' PROPERTIES
[Properties fallen to the share of Plaintiff
(Mahantesh S/o Kallappa Patil)]

Sl. No.	SY/RS/Plot. No.	Extent Acre(A) Gunta (G)	Village	Taluka	District
1	225/14	4A-17G	Indi	Indi	Vijayapur
2	383	2A-6G out of 04A-6G (Including 1Gunta Karab towards west side	Indi	Indi	Vijayapur
3	Plot No.48 out of NA BI No.320/B	0.01.06.12	Ahirsang	Indi	Vijayapur
4	Plot No.75 out of NA BI No.320/B	0.01.06.12	Ahirsang	Indi	Vijayapur
5	Plot No.86 out NA BI.No.320/B	0.01.06.12	Ahirsang	Indi	Vijayapur
6	Plot No.35 out of NA BI.No.320/B	0.01.06.12	Ahirsang	Indi	Vijayapur
7	Plot No.76 out of NA BI No.320/B	0.01.01.01	Ahirsang	Indi	Vijayapur



Sl. No.	SY/RS/Plot. No.	Extent Acre(A) Gunta (G)	Village	Taluka	District
8	Plot No.85 out of NA BI No.320/B	0.01.01.01	Ahirsang	Indi	Vijayapur
9	Plot No.27 out of NA BI No.320/B	0.01.01.01	Ahirsang	Indi	Vijayapur

8. The properties shown in below Schedule-B below are already in possession defendant 3(a) to 3(d) and now it is exclusively given to the share and title of defendant No. 3(a) to 3(d) jointly and given up/surrender their entire share in the Schedule-A properties to plaintiff and Schedule- C properties to defendant No. 2, 4 and 5, respectively.

SCHEDULE 'B' PROPERTY

[Properties fallen to the share of Respondent No.3 (a) Defendant No. 3 (a) to (d) (Premalata, Shreeshail, Priyanka & Aishwaraya)]

Sl. No.	SY/RS/Plot No.	Extent Acre(A) Gunta (G)	Village	Taluka	District
1	382/1	2A-27G	Indi	Indi	Vijayapur
2	406/P84/2 Plot No.84/2	40X20	Indi	Indi	Vijayapur

9. The property shown in below Schedule-C below is in possession of Plaintiff and now 2 Acre out of 4 Acre 6 Guntas towards East is exclusively given to the share, title and possession of defendants No. 2, 4 and 5 by division as shown below in Schedule-C and the



defendant No. 2, 4 and 5, have given up/surrender their entire share in above Schedule-A Properties of plaintiff and Schedule-B properties of defendant No. 3(a) to (d).

SCHEDULE 'C' PROPERTY

**[Properties fallen to the share of Defendant No.2, 4 and 5
(Usha, Bharati & Manjula)]**

Sl. No.	SY/RS/ Plot No.	Extent Acre(A) Gunta (G)	Village	Taluka	District
1	383	2 Acre out of 04 Acre-6 Guntas (Towards Eastern Side)	Indi	Indi	Vijayapur

9. That, the plaintiff herein is agreed to leave/give a cart way in his share of the Sy.No. 383 of Indi Village, Indi Taluk, District Vijayapur measuring 2A-6G out of 4A 6G towards west to east in the north side of the property and defendant No. 2, 4, and 5 have also agreed to leave/give a cart way in their share of the Sy.No. 383 of Indi Village, Indi Taluk, District Vijayapur measuring 2A-0G out of 4A 6G towards west to east in the north side of the property to approach the properties of defendants No. 2, 4 and 5 and to defendant No.3(a) to (d) allotted share land in Sy.No.382/1, of Indi Village, district Vijayapur measuring 2A-27G. That, parties herein have no objections to enter the said cart way in the village map by revenue authorities by either of the parties' application. Further, the parties shall not obstruct the cart way each other for use and freely movement of



agriculture products and other purpose in respect of the cart way mentioned herein.

10. That, the defendant No.1 is the wife of deceased Kallappa Patil and said Kallappa Patil was Govt. Primary Teacher and after his death, the defendant No.1 is receiving the pension from Government. Hence, defendant No.1 has relinquished her share, interest and rights in the suit schedule properties in favour of plaintiff and other defendant's No. 2 to 5 herein as above said. That, in consideration of relinquishing her share, interest and rights in the suit schedule properties, the plaintiff and defendant No.2 to 5 equally shall take care of residence, well being, health, livelihood of the defendant No.1.

11. That, the above compromise arrived at before elderly persons and it is for the benefit and interest of all the parties to this appeal towards full and final settlement in respect of all suit schedule properties shown in Para No. 8 Annexure-A of the judgment in OS.29/2019 of on the file of Senior Civil Judge and JMFC, Indi.

12. Since, FDP No. 11/2024 is pending before the Senior Civil Judge and JMFC and the parties herein shall submit this compromise petition and the decree passed in this first appeal before the FDP Court for proceedings and draw final decree in the terms of this compromise entered between the parties herein.



13. The parties to the appeal/compromise petition are entitled to record the mutations of the respective properties given to their share, in their names, as per the above terms of the compromise for which any of the parties to this appeal have no any objections and shall bear their own costs."

5. The above appeal is disposed of in terms of compromise petition.

Office is directed to draw final decree in terms of compromise petition.

Sd/-
(H.T.NARENDRA PRASAD)
JUDGE

Sd/-
(TYAGARAJA N. INAVALLY)
JUDGE

SMP
List No.: 1 Sl No.: 12
CT: SB